

25CMCV00685 25CMCV00685

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Division: Civil Law and Motion

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Following entry of default

against defendants and each of them, the court held an evidentiary hearing on July 1, 2026 on plaintiff's quiet title cause of action based on alleged adverse possession. Plaintiff appeared and presented testimony and documentary evidence in support of his claim. Following the hearing, in considering plaintiff's request for entry of default judgment, the court reviewed and carefully considered the allegations in plaintiff's verified First Amended Complaint (FAC) filed in this action on August 27, 2025, the proofs of service of the summons and complaint and FAC, and the law governing plaintiff's adverse possession claim.

"In a default case the judge's duty in connection with the default process is 'to act as a gatekeeper, ensuring that only the appropriate claims get through.' Grappo v. McMills (2017) 11 Cal.App.5th 996, 1000 [240 Cal.Rptr.3d 164]. The judge must take time to analyze the complaint to ensure that it supports the judgment that plaintiff is seeking and to determine whether the evidence ... supports the requested damages. Kim v. Westmoore (2011) 201 Cal.App.4th 267, 272 [133 Cal.Rptr.3d 774]. (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal. App. 5th 743, 751, as modified on denial of reh'g (Dec. 11, 2024), review denied (Feb. 11, 2025).)

To establish

adverse possession, the claimant must prove: (1) possession under claim of right or color of title; (2) actual, open and notorious occupation of the premises constituting reasonable notice to the true owner; (3) possession which is adverse and hostile to the true owner; (4) continuous possession for at least five years; and (5) payment of all taxes assessed against the

property during the five-year period.

(§ 18:2. Required facts; burden of proof, 6 Cal. Real Est. § 18:2 (4th ed.), citing Code of Civ. Proc. §§ 318 to 328.5.)

In order to

perfect title by adverse possession, the possession of a claimant must be hostile and adverse. This requirement does not mean that the parties have an actual dispute over the title, but merely that the claimant's possession is without recognition of any rights of the true owner. (6 Cal. Real Est. § 18:13 (4th ed.), citations omitted.) “Adverse use” means only that the claimant's use of the property was made without the explicit or implicit permission of the landowner.” (Ibid.)

Plaintiff seeks to quiet title to

real property APN 6153-010-050 (the “Property”) located adjacent to 2080 E. Oris Street, Compton, CA 90222.

Plaintiff alleges that he took possession of the Property on April 4, 2025, fenced and maintained it, and began payment of property taxes. (FAC ¶¶ 1-2.) This verified allegation and plaintiff's consistent testimony under oath establishes that he has only had possession of the Property since April 4, 2025, substantially less than the five years required by law to constitute adverse possession. In fact, according to plaintiff's own allegations, at the time the original complaint was filed on April 25, 2025 he had only been in possession of the Property for 21 days.

Moreover, to

establish title by adverse possession, a possessor must pay all taxes that are validly levied and assessed on the property during the time that the land has been occupied and claimed, except when the possessor can prove (1) that none have been levied, or (2) that the property was exempt from property tax. (6 Cal. Real Est. § 18:23 (4th ed.).) As amended in 2010, the law requires proof of timely payment of property taxes to be made by certified records from the county tax collector where claim to title is not made by written instrument. (Ibid.; Code of Civ. Proc. § 325, subd. (b), emphasis added.) Although plaintiff proffered proof of payment of taxes, he proffered no such certified records from the county tax collector as required. Certified records from the county tax collector are required for the entire five year period.

Based on the foregoing, the court

concludes plaintiff did not meet his burden of proof on his quiet title claim

based upon adverse possession. The court therefore will not enter judgment in plaintiff's favor, and instead the court will dismiss the action without prejudice to plaintiff refiling the action after having continuous possession of the Property for at least five years.

The clerk is directed to give notice.